Supreme Court Lets Border Wall Work Continue in West Texas

From: NPR World Mined: 2026-11-10 5 min read

The U.S. Supreme Court said on Monday that work on border barriers in west Texas can move ahead while a court case about the plans continues. The decision clears the way for hundreds of miles of barrier and security work in the Big Bend region, including land inside Big Bend National Park, known for its sweeping canyons and wide, unspoiled desert.

The court's five-page decision was **unsigned**, meaning no justice signed it as the author. It said the federal judge in El Paso who had paused the work did not have the authority to weigh in. Justice Ketanji Brown Jackson was the only justice who disagreed.

The judge's pause had stopped work on 30-foot-tall steel barriers, patrol roads, **surveillance** systems, and other border **infrastructure**. The court said federal law lets the Secretary of Homeland Security, Markwayne Mullin, set aside environmental protections and conservation laws to speed up border construction.

The case was brought by the Center for Biological Diversity, an environmental group, a nonprofit working to preserve a historic church near the border. They argued the plans are **unconstitutional** and that Big Bend residents would be harmed if construction continued.

The plans have drawn criticism from people across the political spectrum. Critics say a wall is not needed in the Big Bend, where rugged land and desert heat already make crossings rare. They worry about the environment, **Indigenous** sites, wildlife, and tourism.

In its emergency request to the court in late October, the government said a gap in the Big Bend would act as 'a dangerous magnet for cartels and other bad actors.' The Big Bend Sector covers a nearly 500-mile stretch, more than a quarter of the U.S.-Mexico border, and it regularly sees the fewest encounters along the Texas border, according to Customs and Border Protection data.

Word Treasure

unsigned -- Not signed by the person who wrote it.

infrastructure -- The basic things a place needs to work, like roads, walls, and power lines.

unconstitutional -- Against the rules in a country's constitution, its most important set of laws.

Indigenous -- Describing the first peoples who lived in a place, long before others arrived.

surveillance -- Watching a place closely, often with cameras, to see what happens there.

Background you need

The Supreme Court is the highest court in the United States, and its decisions are the final word on what the law means.

The U.S.-Mexico border is guarded with walls, fences, patrol roads, and cameras, and the government sometimes builds new barriers in places where it thinks people may cross.

Big Bend National Park is a large protected desert park in Texas, known for its canyons and wild land, where building is normally limited to protect nature.

When people disagree about a government plan, they can take the case to court, and a judge can pause the plan while the case is decided.

Break it down

LEAD: The Supreme Court said border barrier work in west Texas can continue while the court case goes on.

KEY EVENT: The five-page unsigned decision said the El Paso judge who paused the work did not have the authority to weigh in.

+- WHO: Justice Ketanji Brown Jackson was the only justice who disagreed.

+- WHAT WAS PAUSED: Work on 30-foot-tall steel barriers, patrol roads, surveillance systems, and other border infrastructure.

+- WHY IT CAN GO AHEAD: Federal law lets the Secretary of Homeland Security, Markwayne Mullin, set aside environmental protections and conservation laws.

EVIDENCE: The Big Bend Sector covers a nearly 500-mile stretch and regularly sees the fewest encounters along the Texas border, according to Customs and Border Protection data.

OPEN QUESTION: The court case about the plans continues, and critics worry about the environment, Indigenous sites, wildlife, and tourism.

Why it matters

The decision shows how courts can shape big building projects, and how protecting nature, keeping borders secure, and respecting local communities can pull in different directions.

Test what you remember

1. What did the Supreme Court say on Monday?

(A) Big Bend National Park will close
(B) The case about the plans is over
(C) All border wall work must stop at once
(D) Border wall work in west Texas can move ahead while the case continues

2. What was unusual about the court's decision?

(A) It was unsigned, so no justice signed it as the author
(B) It was read out loud on television
(C) It was written by Justice Jackson
(D) It was five hundred pages long

3. What had the judge's pause stopped?

(A) The work of Customs and Border Protection
(B) Trade between the U.S. and Mexico
(C) Work on 30-foot-tall steel barriers, patrol roads, and surveillance systems
(D) All visits to Big Bend National Park

4. Who brought the case against the plans?

(A) The Center for Biological Diversity and a nonprofit that preserves a historic church
(B) Justice Ketanji Brown Jackson
(C) Customs and Border Protection
(D) The Secretary of Homeland Security

5. Why do critics say a wall is not needed in the Big Bend?

(A) The area has no border at all
(B) The rugged land and desert heat already make crossings rare
(C) There are already too many walls there
(D) The park is closed to the public

6. What did the government say a gap in the Big Bend would do?

(A) Act as a dangerous magnet for cartels and other bad actors
(B) Help wildlife move freely
(C) Bring more tourists to the park
(D) Make the desert cooler

Answer key (try the quiz first!): 1: D 2: A 3: C 4: A 5: B 6: A

Questions to think about

1. The government: Says a gap in the Big Bend would attract cartels and other bad actors, and that the law lets the Homeland Security Secretary set aside environmental protections to speed up border construction.

2. The Center for Biological Diversity and the church nonprofit: Argue the plans are unconstitutional and that Big Bend residents would be harmed if construction continued.

3. Critics of the plans: Say a wall is not needed in the Big Bend because rugged land and desert heat already make crossings rare, and worry about the environment, Indigenous sites, wildlife, and tourism.

MY THOUGHTS (at least 20 words):